

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ERIKA PEREZ,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER EDWIN
NIEVES, BADGE NUMBER 21117, AND SEVERAL
UNIDENTIFIED POLICE OFFICERS ASSIGNED
TO THE 43RD PRECINCT,

Defendants.
-----X

Index No.:

Date Purchased:

Plaintiff designates Bronx
County as the place of trial.

Basis of venue is place
of occurrence.

SUMMONS

Plaintiff resides at
1268 Olmstead Avenue
Apartment 2U
Bronx, New York 10462

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
June 10, 2015



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
ERIKA PEREZ
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendant's address:

CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER EDWIN NIEVES,
BADGE NUMBER 21117,
43rd Precinct
900 Fteley Avenue
Bronx, New York 10473

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ERIKA PEREZ,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, POLICE OFFICER EDWIN
NIEVES, BADGE NUMBER 21117, AND SEVERAL
UNIDENTIFIED POLICE OFFICERS ASSIGNED
TO THE 43RD PRECINCT,

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff ERIKA PEREZ by and through her attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO 43RD PRECINCT, respectfully alleges as follows:

1. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.

2. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK, its agents servants and employees operated, maintained and controlled the New York City Police Department, including all the police officers thereof.

3. Upon information and belief, that at all times hereinafter mentioned, Defendant POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, was employed by Defendant CITY OF NEW YORK as a police officer.

4. That at all times hereinafter mentioned, Defendant POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, acted within the scope of his employment for Defendant CITY OF NEW YORK.

5. That at all times hereinafter mentioned, Defendant POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County of Bronx, City of New York, and

under the authority of his office as police officer for said county and city.

6. Upon information and belief, that at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 43RD PRECINCT were employed by Defendant CITY OF NEW YORK as police officers.

7. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 43RD PRECINCT acted within the scope of their employment for Defendant CITY OF NEW YORK.

8. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 43RD PRECINCT were acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County of Bronx, City of New York, and under the authority of their office as police officers for said city and county.

9. That on or about April 3, 2014, at approximately 11:30 P.M., Defendants POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 43RD PRECINCT, responded to a call regarding a disturbance in Apartment 1C, 1098 Croes Avenue, Bronx, New York 10472.

10. That on April 3, 2014, at approximately 11:45 P.M., Plaintiff ERIKA PEREZ received a telephone call from her mother who requested that Plaintiff come to Apartment 1C, 1098 Croes Avenue, Bronx, New York 10472, her mother's place of residence, because plaintiff's brother was intoxicated and acting in a belligerent manner.

11. That on April 4, 2014, at approximately 12:00 A.M., Plaintiff ERIKA PEREZ arrived at 1098 Croes Avenue, Bronx, New York 10472. Upon arrival, Plaintiff saw her brother in front of the building speaking with members of the New York City Police Department. Plaintiff ERIKA PEREZ entered the building and went to apartment 1C, upon entering the apartment, Plaintiff saw her visibly distraught mother speaking with Defendants POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 43RD PRECINCT. Plaintiff approached the Defendant Police Officers and

asked what had happened. In response, Defendant POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, told Plaintiff to “shut up” and to go into the adjoining room. Plaintiff ERIKA PEREZ responded that she was concerned about her mother, and Defendant POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, stated that Plaintiff had been told to “shut up” and go “over there”. Plaintiff ERIKA PEREZ asked Defendant POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, why he was being so disrespectful. In response, Defendant POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, stated that he had “had enough”, and Defendant proceeded to grab Plaintiff ERIKA PEREZ, push her face first against a wall, handcuff Plaintiff, and place her under arrest despite Defendant’s knowledge that he lacked reasonable grounds or probable cause to do so.

12. Plaintiff ERIKA PEREZ was then escorted from the premises, placed in a patrol car and transported to the 43rd Precinct (900 Fteley Avenue, Bronx, New York 10473) where her arrest was processed.

13. While at the 43rd Precinct, Plaintiff ERIKA PEREZ began to feel disoriented and light-headed, Plaintiff requested medical attention and was taken by ambulance to Jacobi Medical Center (1400 Pelham Parkway South, Bronx, New York 10461). After treatment, Plaintiff ERIKA PEREZ was returned to the 43rd Precinct and thereafter transported to Bronx Central Booking for arraignment.

14. That, following arraignment on April 5, 2014, at approximately 10:30 A.M., Plaintiff ERIKA PEREZ was released on her own recognizance.

15. That Defendants POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 43RD PRECINCT initiated criminal proceedings against Plaintiff ERIKA PEREZ despite Defendants’ knowledge that they lacked probable cause to do so.

16. That Plaintiff ERIKA PEREZ was held, detained and imprisoned from April 4, 2014, to April 5, 2014, by Defendants POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 43RD

PRECINCT before being released.

17. That on or about June 17, 2014, within 90 days of the happening of the complained of incident but more than 30 days prior to the commencement of this action, Plaintiff ERIKA PEREZ duly presented, served, and filed a Notice of Claim, in writing, upon the Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant and claimant's attorney; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

18. Upon information and belief Defendant CITY OF NEW YORK waived its right to a General Municipal Law 50-h Hearing in this matter.

19. This action is commenced within one year and ninety days after the cause of action arose.

20. This action falls within one or more of the exceptions set forth in CPLR §1602.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
FALSE ARREST UNDER 42 U.S.C. § 1983**

21. Plaintiff ERIKA PEREZ repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

22. That at the aforementioned time and place, Defendants POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 43RD PRECINCT, placed Plaintiff ERIKA PEREZ under arrest, despite Defendants' knowledge that they lacked probable cause to do so.

23. That Plaintiff ERIKA PEREZ has not committed any offense and Defendants POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 43RD PRECINCT did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

24. That Defendants POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 43RD PRECINCT were aware that probable cause did not exist for the arrest and detention of Plaintiff ERIKA PEREZ and that said arrest and detention was illegal, without justification or excuse, and without

authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff ERIKA PEREZ and such actions were committed in bad faith.

25. That, in all of the wrongful acts above alleged, Defendants POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 43RD PRECINCT, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff ERIKA PEREZ and such actions were committed in bad faith.

26. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants CITY OF NEW YORK, POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 43RD PRECINCT, all committed under color of their authority as police officers, and while acting in that capacity, Plaintiff ERIKA PEREZ was deprived of the rights and immunities secured to her under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), her liberty was restricted for an extended period of time, she was put in fear for her safety, and she was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

27. As a further result of the above-described acts, Plaintiff ERIKA PEREZ was deprived of the rights and immunities secured to her under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983**

28. Plaintiff ERIKA PEREZ repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

29. That Plaintiff ERIKA PEREZ was falsely imprisoned from April 4, 2014 at approximately 12:00 A.M. to April 5, 2014, at approximately 10:30 A.M., by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, and SEVERAL

UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 43RD PRECINCT, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

30. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 43RD PRECINCT intended to confine Plaintiff ERIKA PEREZ and Plaintiff ERIKA PEREZ was conscious of the confinement, and Plaintiff ERIKA PEREZ did not consent to the confinement.

31. That Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff ERIKA PEREZ and damaging Plaintiff ERIKA PEREZ in her reputation and depriving her of her liberty.

32. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 43RD PRECINCT all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff ERIKA PEREZ suffered damage, all of which is in violation of her rights under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
MUNICIPAL LIABILITY**

33. Plaintiff ERIKA PEREZ repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

34. Defendants POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 43RD PRECINCT, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority,

which is forbidden by the Constitution of the United States.

35. That the aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority females based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

36. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff ERIKA PEREZ .

37. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff ERIKA PEREZ as alleged herein.

38. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff ERIKA PEREZ as alleged herein.

39. Defendants POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 43RD PRECINCT, collectively and individually, while acting under the color of state law, were directly and actively involved in violating Plaintiff ERIKA PEREZ's constitutional rights.

40. All of the foregoing acts by Defendants deprived Plaintiff ERIKA PEREZ of federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;
- C. To be free from unlawful search;
- D. To be free from malicious abuse of process;
- E. Not to have cruel and unusual punishment imposed upon him;
- F. To receive equal protection under the law.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
FAILURE TO INTERVENE**

41. Plaintiff ERIKA PEREZ repeats, reiterates and realleges each and every allegation contained in this complaint.

42. Each and every individual Defendant Police Officer had an affirmative duty to intervene on Plaintiff ERIKA PEREZ's behalf to prevent the violation of her constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

43. As a result of the aforementioned conduct of the individual Defendants, Plaintiff ERIKA PEREZ's constitutional rights were violated and she was subjected to excessive force and sustained physical injuries.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
FALSE ARREST UNDER NEW YORK STATE LAW**

44. Plaintiff ERIKA PEREZ repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

45. Defendants POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 43RD PRECINCT, arrested Plaintiff ERIKA PEREZ in the absence of probable cause and without a warrant.

46. As a result of the aforesaid conduct by Defendants CITY OF NEW YORK, POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 43RD PRECINCT, Plaintiff ERIKA PEREZ was subjected to an illegal, improper and false arrest by the Defendants and taken into custody and cause to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings.

47. The aforesaid actions by Defendants CITY OF NEW YORK, POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 43RD PRECINCT, constituted a deprivation of Plaintiff ERIKA PEREZ's rights.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER NEW YORK STATE LAW**

48. Plaintiff ERIKA PEREZ repeats, reiterates, and realleges each and every paragraph of this complaint and further allege:

49. As a result of the foregoing, Plaintiff ERIKA PEREZ was falsely imprisoned, her liberty was restricted for an extended period of time, she was put in fear for her safety, and she was humiliated and subjected to handcuffing and other physical restraints.

50. Plaintiff ERIKA PEREZ was conscious of said confinement and did not consent to same.

51. The confinement of Plaintiff ERIKA PEREZ was without probable cause and was not otherwise privileged.

52. As a result of the aforementioned conduct, Plaintiff ERIKA PEREZ has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
NEGLIGENT HIRING AND RETENTION**

53. Plaintiff ERIKA PEREZ repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

54. That Defendant CITY OF NEW YORK, was careless and reckless in hiring and retaining as and for its employees, Defendants POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, AND SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 43RD PRECINCT, in that said Defendant employees lacked the experience, deportment and ability to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring practices, and in particular, in hiring the defendant employees who lacked the mental capacity and the ability to function as employees of Defendant CITY OF NEW YORK; in that the Defendant employees lacked the maturity, sensibility and intelligence to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK knew of the lack of ability, experience, deportment and

maturity of said Defendant employees when they hired them to be employees; and, in that Defendant CITY OF NEW YORK, its agents, servants and/or employees were otherwise careless, negligent and reckless.

55. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of Defendants POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 43RD PRECINCT to engage in the wrongful conduct heretofore alleged in this Complaint.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
NEGLIGENT TRAINING AND SUPERVISION**

56. Plaintiff ERIKA PEREZ repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

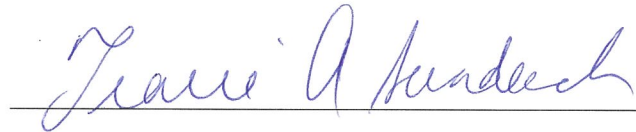
57. The failure of Defendant CITY OF NEW YORK to adequately train, supervise, discipline or in any way control the behavior of Defendants POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 43RD PRECINCT, in the exercise of their employment functions, and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff ERIKA PEREZ. Further, the Defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

58. The failure of Defendant CITY OF NEW YORK, to train, supervise, discipline or in any other way control Defendants POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 43RD PRECINCT, in the exercise of their employment functions and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff ERIKA PEREZ.

59. As a result of the foregoing, Plaintiff ERIKA PEREZ is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual Defendants in the sum of Three Million Dollars (\$3,000,000.00).

WHEREFORE Plaintiff ERIKA PEREZ demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER EDWIN NIEVES, BADGE NUMBER 21117, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 43RD PRECINCT, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
June 10, 2015



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
ERIKA PEREZ
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK }
COUNTY OF WESTCHESTER } SS.:

I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirmant maintains her office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
June 10, 2015



TRACIE A. SUNDACK